HOSTING AND MANAGED SERVICES AGREEMENT

This Hosting and Managed Services Agreement (the "**Agreement**") is made on 14 August 2026 (the "**Effective Date**").

PARTIES

(1) **NIAGA CLOUDWORKS SDN. BHD.** (Company No. SAMPLE-MY-0901), a company incorporated in Malaysia with its registered office at Level 9, Menara Contoh, Jalan Contoh Utama, 50450 Kuala Lumpur, Malaysia (the "**Provider**"); and

(2) **KLINIK SIHAT BERSAMA SDN. BHD.** (Company No. SAMPLE-MY-0902), a company incorporated in Malaysia with its registered office at No. 17, Jalan Contoh 3/9, Bandar Contoh, 47100 Puchong, Selangor, Malaysia (the "**Customer**").

BACKGROUND

(A) The Provider offers cloud hosting, backup and managed IT services to small and medium businesses.

(B) The Customer operates four (4) family clinics in the Klang Valley and wishes to host its patient appointment system and clinic records database with the Provider and to have the Provider manage that environment.

1. DEFINITIONS

1.1 In this Agreement:

"**Services**" means the hosting, backup, monitoring and managed services described in Schedule 1.

"**Environment**" means the virtual servers, storage and network resources allocated to the Customer by the Provider.

"**Customer Data**" means all data placed in the Environment by or for the Customer, including patient and appointment records and personal data.

"**Monthly Fee**" means the monthly charge for the Services set out in Schedule 2.

"**Service Credit**" means the percentage of the Monthly Fee credited to the Customer under Clause 4.

1.2 References to days are to calendar days.

2. SERVICES

2.1 The Provider shall provide the Services to the Customer from the Effective Date in accordance with Schedule 1.

2.2 The Provider shall carry out security patching of the operating system, daily backups kept for fourteen (14) days, and round-the-clock monitoring of the Environment.

2.3 The Customer shall use the Services lawfully, shall keep its administrator credentials secure and shall not use the Environment to send spam or to host unlawful content.

2.4 The Provider may use sub-processors and third-party data centres to provide the Services and remains responsible for them.

Sample document for testing. All parties are fictional.

3. FEES AND PAYMENT

3.1 The Customer shall pay the Monthly Fee in advance, within thirty (30) days of the date of each invoice.

3.2 Fees are exclusive of sales and service tax. The Provider may increase the Monthly Fee once in any twelve (12) month period by giving at least sixty (60) days' written notice, provided that the increase does not exceed five per cent (5%).

3.3 The Customer may withhold payment of any part of an invoice that it disputes in good faith, provided it pays the undisputed part by the due date and notifies the Provider of the dispute in writing.

4. SERVICE LEVELS

4.1 The Provider shall make the Environment available for at least 99.0% of the time in each calendar month, excluding planned maintenance notified at least three (3) days in advance.

4.2 If availability in a month is below 99.0%, the Customer is entitled to a Service Credit of five per cent (5%) of that month's Monthly Fee for each full hour of downtime beyond the permitted level, up to a maximum of thirty per cent (30%) of the Monthly Fee for that month.

4.3 Service Credits are the Customer's sole and exclusive remedy for any failure by the Provider to meet the availability level in Clause 4.1 or for any outage of the Services, and the Customer may not terminate this Agreement or claim damages for any such failure.

4.4 To claim a Service Credit the Customer must apply in writing within seven (7) days after the end of the month concerned.

5. DATA LOCATION AND SECURITY

5.1 The Provider shall protect the Customer Data with security measures that are reasonable for a hosting service of this kind, including firewalls, access controls and encryption of backups.

5.2 The Provider may store, replicate and process the Customer Data in any data centre operated by it or its suppliers in any country, including outside Malaysia, and may change the location at any time without notice to the Customer.

5.3 The Provider shall notify the Customer of any confirmed security incident affecting the Customer Data in the Environment.

5.4 The Customer is responsible for the accuracy and lawfulness of the Customer Data it places in the Environment.

6. INTELLECTUAL PROPERTY

6.1 The Customer owns all rights in the Customer Data and in the software it installs in the Environment. The Provider owns all rights in its own tools, scripts, documentation and platform.

6.2 The Provider may use the Customer's name in its list of customers with the Customer's prior written consent.

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7. WARRANTIES

7.1 The Provider warrants that it will perform the Services with reasonable skill and care, using suitably qualified personnel.

7.2 Except as stated in this Agreement, the Provider gives no other warranty about the Services, whether express or implied.

8. LIMITATION OF LIABILITY

8.1 Neither party shall be liable to the other for any loss of profits, revenue or goodwill, or for any indirect or consequential loss.

8.2 Each party's total liability to the other arising out of or in connection with this Agreement in any twelve (12) month period shall not exceed the Monthly Fees paid or payable for the twelve (12) months preceding the claim.

8.3 Nothing in this Agreement limits liability for fraud, for death or personal injury caused by negligence, or for any liability that cannot be limited by law.

9. CONFIDENTIALITY

9.1 Each party shall keep the other's confidential information confidential, use it only for this Agreement, and disclose it only to those of its staff, advisers and sub-processors who need to know it and are bound by equivalent duties. This does not apply to information that is public, already known to the recipient, lawfully received from a third party or required by law to be disclosed. This obligation continues for three (3) years after termination.

10. TERM AND TERMINATION

10.1 This Agreement starts on the Effective Date and continues for an initial term of twenty-four (24) months. It then continues until terminated under this Clause.

10.2 The Customer may terminate this Agreement for convenience by giving the Provider at least sixty (60) days' written notice. The Provider may terminate this Agreement for convenience by giving the Customer at least seven (7) days' written notice.

10.3 Either party may terminate this Agreement immediately by written notice if the other commits a material breach that is not remedied within thirty (30) days of written notice, or becomes insolvent.

10.4 On termination the Provider shall allow the Customer to retrieve the Customer Data for thirty (30) days, in a standard, commonly used format, and shall then delete it.

11. GOVERNING LAW AND DISPUTES

11.1 This Agreement is governed by the laws of Malaysia.

11.2 The parties shall first try to settle any dispute by discussion between senior management for thirty (30) days. Any dispute not so resolved shall be decided by the courts of Kuala Lumpur.

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12. GENERAL

12.1 Neither party may assign this Agreement without the other's prior written consent.

12.2 This Agreement and its Schedules are the entire agreement between the parties and replace all earlier proposals. Any variation must be in writing and signed by both parties.

12.3 Notices shall be in writing and sent by courier or email to the addresses stated above.

SIGNATURES

Signed for and on behalf of **NIAGA CLOUDWORKS SDN. BHD.**

Signature: _____

Name: _____ Designation: Director

Date: _____

Signed for and on behalf of **KLINIK SIHAT BERSAMA SDN. BHD.**

Signature: _____

Name: _____ Designation: Director

Date: _____

Schedule 1 (Services) and Schedule 2 (Fees) are attached separately.

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